

25STCV20481 25STCV20481

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV20481 Hearing Date: July 28, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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GOLDEN BANK, N.A.,

Plaintiff(s),

vs.

SOHRAT

KHORSANDI, et al.,

Defendant(s).

Case No.:

25STCV20481

Hearing Date:

July 28, 2026

[TENTATIVE]

ORDER RE: APPLICATIONS FOR WRIT OF ATTACHMENT

Golden Bank, N.A. ("Plaintiff") seeks writs of attachment against defendants Soghrat Khorsandi ("Soghrat"), Mahboubeh Loyodin ("Loyodin"), and Chantel Khorsandi ("Chantel") (collectively, "Defendants").

The three unopposed applications are granted.

I.

Background

1.

Factual

Background

On or about July 18, 2022, Plaintiff loaned Washington Media Complex, LLC and Bolts Coffee, LLC (collectively, "Borrower") \$6,000,000 ("Loan"). (Memon Decl., ¶ 3.) The same day, Borrower executed a Promissory Note ("Note") in which Borrower agreed to repay the principal sum of \$6,000,000 and interest in 59 monthly payments beginning August 18, 2022. (Memon Decl., ¶ 3.) The Borrower obtained the Loan to refinance its commercial property. (Memon Decl., ¶ 3.) The Note provides for reasonable attorney fees if legal action is necessary to enforce payment. (Memon Decl., ¶ 11.)

Also on or about July 18, 2022, Defendants each executed and delivered a Guaranty Agreement (collectively, "Guaranty"). (Memon Decl., ¶ 6, Ex. A.) Plaintiff extended the Loan in reliance on the Guaranty. (Memon Decl., ¶ 7.) The Guaranty provides for reasonable attorney fees if legal action is necessary to enforce payment. (Memon Decl., ¶ 11.)

Borrower failed to make the monthly payment due November 18, 2025 and all payments since. (Memon Decl., ¶ 9.) As a result of Borrower's default, Plaintiff accelerated the Loan. (Memon Decl., ¶ 9.) Defendants breached the Guaranty by failing to pay Borrower's obligation under the Loan and Note. (Memon Decl., ¶ 10.)

Plaintiff contends Borrower and Defendants owe \$6,283,505.29 on the Note and Guaranty. (Memon Decl., ¶ 12.)

2.

Procedural

History

On July 10, 2025, Plaintiff filed this action against Defendants for breach of guaranty and money lent. Proofs of service filed August 8 and 27, 2025 show Plaintiff served the summons and complaint on Soghrat and Loyodin by personal service on July 18, 2025, and on Chantel by substituted service on August 8, 2025. On February 9, 2026, Defendants filed their answer.

On May 22, 2026, the Court denied Plaintiff's ex parte application for right to attach orders. The Court ordered Plaintiff could file a regularly noticed motion and reserve a hearing with the Writs and Receivers Department, Department 834.

On May 27, 2026, the Court denied Plaintiff's second ex parte application for right to attach orders for failure to make an affirmative factual showing of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte. The denial was without prejudice to Plaintiff to file a regularly noticed motion.

On May 29, 2026, Plaintiff filed its application for a right to attach order after hearing as to Soghrat. On June 2, 2026, Plaintiff filed its applications for right to attach orders after hearing as to Loyodin and Chantel. The Court considers these three applications in the instant hearing.

II.

Applicable Law

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought." (CCP § 484.010.)

The application shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is

stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (CCP § 484.020.)

The application for a writ of attachment must be supported “by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP § 484.030.)

The court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (CCP § 484.090(a), (d).) The Court shall issue a right to attach order if it finds all of the following:

“(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.”

(CCP § 484.090(a)(1-4).)

At the times prescribed by CCP section 1005, subdivision (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (CCP § 484.040.)

“The Attachment Law statutes are subject to strict construction....” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

III.

Analysis

1.

Claim

on Which Attachment Can Be Based

"[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (CCP § 483.010(a).) "An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement" (CCP § 483.010(b).)

Here, Plaintiff's claims against Defendants are premised on its cause of action for breach of the Guaranty. (Mem. at 3-4.) Plaintiff may seek attachment based on its breach claim.

2.

Contract

Based on a Commercial Claim

If the action is against a defendant who is a natural person, an attachment may be issued only on a commercial claim which arises out of the defendant's conduct of a trade, business, or profession. (CCP §483.010(c).) Consumer transactions cannot form a basis for attachment. (CCP §483.010(c); Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson ("Kadison") (1987) 197 Cal.App.3d 1, 4 [action involving trust property was a commercial, not a consumer, transaction].)

Defendants own commercial real property. (Memon Decl., ¶¶ 3, 13.) Borrower obtained the Loan and Defendants executed the Guaranty to refinance that commercial property. (Memon Decl., ¶ 3.) The Guaranty and Loan constitute a commercial transaction, and, accordingly, Plaintiff's claim is a commercial claim.

3.

Fixed

or Readily Ascertainable Amount

A claim is "readily ascertainable" where the damages may be readily ascertained by reference to the contract and the basis of the calculation appears to be reasonable and definite. (CIT Group/Equipment

Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App.4th 537, 540-41.) The fact that the damages are unliquidated is not determinative. (Ibid.) But the contract must furnish a standard by which the amount may be ascertained and there must be a basis by which the damages can be determined by proof. (Ibid.)

Here, Plaintiff's evidence shows Plaintiff extended the \$6,000,000 Loan to Borrower, guaranteed by Defendants. (Memon Decl., ¶ 3, Ex. A.) Borrower failed to make its November 2025 payment and has made no payment since. (Memon Decl., ¶ 9.) Plaintiff performed under the Note. (Memon Decl., ¶ 8.) According to Plaintiff, Borrower and Defendants owe \$6,283,505.29, composed of \$5,818,484.73 in remaining principal, \$377,511.54 in interest, \$16,155.40 in late charges, \$11,032 in appraisal fees, \$24,259.67 in other charges and fees, \$13,031 in foreclosure fees, \$22,640.95 in legal fees, \$250 in recording fees, and \$140 in payoff quote fees. (Memon Decl., ¶ 12.) While Plaintiff provides no documentary evidence for the amounts paid and incurred, Defendants have not objected. The court will accept Plaintiff's conclusionary evidence.

Plaintiff anticipates legal fees of approximately \$50,000. (Memon Decl., ¶ 15.) According to Los Angeles County Superior Court Local Rule 3.214's contract recoverable attorney fee schedule, the amount of reasonable attorney fees in this case is \$128,940.11. Therefore, Plaintiff's estimated \$50,000 in attorney fees is reasonable, supported, and allowable. Plaintiff's anticipated \$5,000 in costs are likewise allowable. (Memon Decl., ¶ 15.)

The readily ascertainable amount is \$6,338,505.29.

4.

Probable

Validity of Plaintiff's Claims

"A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (CCP § 481.190.) "If the defendant opposes the application, 'the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.' [Citations.]" (Pech v. Morgan (2021) 61 Cal.App.5th 841, 855.)

Here, the application is based on claims for breach of contract. To establish a claim for breach of contract, a plaintiff must prove: (1) existence of a contract; (2) plaintiff's performance or excuse for

nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1367.)

Here, as noted above, Plaintiff's evidence shows Plaintiff extended the \$6,000,000 Loan to Borrower, guaranteed by Defendants. (Memon Decl., ¶ 3, Ex. A.) Borrower failed to make its November 2025 payment and has made no payment since. (Memon Decl., ¶ 9.) Plaintiff performed under the Note. (Memon Decl., ¶ 8.) According to Plaintiff, Borrower and Defendants owe \$6,283,505.29, composed of \$5,818,484.73 in remaining principal, \$377,511.54 in interest, \$16,155.40 in late charges, \$11,032 in appraisal fees, \$24,259.67 in other charges and fees, \$13,031 in foreclosure fees, \$22,640 in legal fees, \$250 in recording fees, and \$140 in payoff quote fees. (Memon Decl., ¶ 12.)

Plaintiff has made a prima facie showing for breach of contract. Defendants do not oppose the applications. Accordingly, Plaintiff has shown the probable validity of its breach of contract claim.

5.
Purpose
of Attachment

The other required finding under CCP section 484.090 is that the "attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based." (CCP § 484.090(a)(3).)

Plaintiff declares that "[a]ttachment is not sought for a purpose other than the recovery on a claim upon which the attachment is based." (App. ¶ 4.) Attachment is sought for proper purpose.

6.
Bankruptcy

CCP section 484.020(d) requires a "statement that the applicant has no information or belief that the claim is discharged in a proceeding under Title 11 of the United States Code (Bankruptcy) or that the prosecution of the action is stayed in a proceeding under Title 11 of the United States Code (Bankruptcy)."

Plaintiff provides this statement. (App. ¶ 5.) This

requirement has been satisfied.

7.

Property

Subject to Attachment

CCP section 487.010(a) states that, where the defendant is a corporation, all corporate property for which a method of levy is provided in CCP section 488.300 et seq. is subject to attachment.

Where the defendant is a natural person, the property to which attachment can apply are limited per CCP section 487.010(c).

Plaintiff seeks property described as follows:

"6900-6906 Santa Monica Blvd., Los Angeles, CA 90038

1914 Raymond Ave., Los Angeles, CA 90007

6272 Banner Ave., Los Angeles, CA 90038

Any interest in BH LLC, a California limited liability company and BH, LLC, a California limited liability company

Any interest in 6900 LLC, a California limited liability company" (Apps. ¶ 9.)

This description is sufficient.

8.

Claims

of Exemption

No claims of exemption are sought.

9.

Undertaking

CCP section 489.210 requires the plaintiff to file an undertaking before issuance of a writ of attachment. CCP section 489.220 provides, with exceptions, for an undertaking in the amount of \$10,000. Defendants do not object to the amount of the undertaking. Accordingly, the Court will order an undertaking in the amount of \$10,000.

IV.

Conclusion

Plaintiff's three applications for attachment against Defendants are GRANTED in the amount of \$6,338,505.29. The undertaking will be \$10,000. See CCP §489.220. No writ shall issue against any defendant until Plaintiff posts the \$10,000 undertaking for that defendant.

Date: July 28, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.